

ZIMBABWE

ACT

To enable effect to be given within Zimbabwe of the Host Country Agreement for the IATFCO Entities between the Republic of Zimbabwe and the African Export-Import Bank, the African Union Commission, and African Continental Free Trade Area Secretariat; and to provide for matters incidental to or connected therewith.

MINDFUL of the major challenges inhibiting intra-African trade, lack of access to trade and market information;

RECALLING the role of trade fairs in promoting intra-African trade was recognised by the founding fathers of the African Union (AU) during the first Conference of Independent African States that was held in Addis Ababa, Ethiopia, from 22nd to 25 May, 1963;

RECOGNISING that the objective of promoting and expanding intra-African trade by instituting the Intra-African Trade Fair, thereby accelerating the growth of intra-African trade and investment, was conceptualised to address the lack of access to trade and market information through provision of a unique platform for facilitating trade and investment information exchange and product/service exhibition in support of increased intra-African trade, especially in the context of implementing the African Continental Free Trade Area Agreement;

ACKNOWLEDGING the decision of Afreximbank in collaboration with AUC and the AfCFTA Secretariat to organise the Intra-African Trade Fair as a sustainable platform to provide access to trade and market information and promote intra-African trade and investment;

Printed by the Government Printer, Harare

DISTRIBUTED BY VERITAS
e-mail: veritas@mango.zw; website: www.veritaszim.net
Veritas makes every effort to ensure the provision of reliable information,
but cannot take legal responsibility for information supplied.

NOTING that the AU Summit in February, 2024 welcomed the impact of IATF on African trade and encouraged the IATF Advisory Council to finalise a feasibility study to ensure IATF becomes financially self-sufficient; and

ACKNOWLEDGING that an IATF entity ("IATFCO") will be set up to run as a commercially viable; profitable and sustainable institution, while at the same time delivering on the development mandate to promote intra-African trade and investment under the African Continental Free Trade Area:

NOW, THEREFORE, BE IT ENACTED BY THE PARLIAMENT AND THE PRESIDENT OF ZIMBABWE AS FOLLOWS–

1 Short title

This Act may be cited as the IATFCO Entities Hosting Agreement Act, 2026.

2 Interpretation

In this Act—

"IATFCO Entities Hosting Agreement" means the Host Country Agreement Between the Republic of Zimbabwe and the African Export-Import Bank, the African Union Commission, and African Continental Free Trade Area Secretariat, set forth in the Schedule;

"IATFCO Entities" has the meaning given to that term by Article 1 of the IATFCO Entities Hosting Agreement;

"member of the family", in relation to any person, shall be construed as meaning—

(a) the spouse or any dependent child of that person; and

(b) any other person deemed by the Minister to be a member of the family in question;

"Minister" means the Minister of Finance or any other Minister to whom the President may, from time to time, assign the administration of this Part.

3 Provisions of IATFCO Entities Hosting Agreement to have force of law

All the provisions of the IATFCO Entities Hosting Agreement shall have the force of law in Zimbabwe.

4 Minister's powers

The Minister may (without violating the spirit or letter of the IATFCO Entities Hosting Agreement) make such regulations and give such directions as he or she may deem necessary or convenient for the carrying out of the objects and purposes of this Act.

FIRST SCHEDULE (Section 2)

HOST COUNTRY AGREEMENT BETWEEN THE REPUBLIC OF ZIMBABWE AND THE AFRICAN EXPORT-IMPORT BANK, THE AFRICAN UNION COMMISSION, AND AFRICAN CONTINENTAL FREE TRADE AREA SECRETARIAT

TABLE OF CONTENTS

PREAMBLE

1. Definitions.
2. Interpretation.
3. Legal Personality.
4. Immunity from Judicial Proceedings.
5. The Premises of the IATFCO Entities.
6. Inviolability of the Premises of the IATFCO.
7. Protection of the Premises of the IATFCO.
8. Public Utilities and Services in the Premises of the IATFCO.
9. Flags and Emblem.
10. Immunity of Property and Inviolability of Archives of the IATFCO.
11. Communications and Publications.
12. Exemption from Customs and Taxation.
13. Privileges and Immunities for Persons Connected with the IATFCO.
14. Social Security.
15. Opportunity to take Employment.
16. Waiver of Immunities Exemptions and Privileges.
17. Notification of Appointments: List.
18. General Provisions.
19. Co-operation.
20. Consultations.
21. Licences, Permits and Other Regulatory Approvals.
22. Host Government Obligations for the IATF.
23. Settlement of Disputes.
24. Amendments.
25. Final Provisions.

SCHEDULE: FORM OF DEED OF ADHERENCE.

PREAMBLE

MINDFUL of the major challenges inhibiting intra-African trade, lack of access to trade and market information;

RECALLING the role of trade fairs in promoting intra-African trade was recognised by the founding fathers of the African Union (AU) during the first Conference

of Independent African States that was held in Addis Ababa, Ethiopia, from 22 to 25 May, 1963;

RECOGNISING that the objective of promoting and expanding intra-African trade by instituting the Intra-African Trade Fair, thereby accelerating the growth of intra-African trade and investment, was conceptualised to address the lack of access to trade and market information through provision of a unique platform for facilitating trade and investment information exchange and product/service exhibition in support of increased intra-African trade, especially in the context of implementing the African Continental Free Trade Area Agreement;

ACKNOWLEDGING the decision of Afreximbank in collaboration with AUC and the AfCFTA Secretariat to organise the Intra- African Trade Fair as a sustainable platform to provide access to trade and market information and promote intra-African trade and investment;

NOTING that the AU Summit in February, 2024 welcomed the impact of IATF on African trade and encouraged the IATF Advisory Council to finalise a feasibility study to ensure IATF becomes financially self-sufficient; and

ACKNOWLEDGING that an IATF entity ("IATFCO") will be set up to run as a commercially viable; profitable and sustainable institution, while at the same time delivering on the development mandate to promote intra-African trade and investment under the African Continental Free Trade Area:

NOW IT IS AGREED AS FOLLOWS—

ARTICLE 1

DEFINITIONS

For the purposes of this Agreement:—

"Archives of IATFCO" includes all records, correspondence, documents, manuscripts, still and moving pictures and film, sound recordings, computer programmes and written materials, video tapes or discs and discs or tapes containing data belonging to or held by the IATFCO;

"Deed of Adherence" means a deed to be executed by each IATFCO Entity (in the form attached to the Schedule hereto) to adhere to and take benefit of the terms and conditions of this Agreement;

"Director" shall have the same meaning as in the constituting documents of each of the IATFCO Entities;

"Employees" means the staff of the IATFCO Entities;

"Government" means the national government of the Republic of Zimbabwe;

"IATF" means the periodic intra-African trade fair and exhibition to be organised by the IATFCO Entities from time to time, including any other periodic sectoral trade fairs and exhibitions to be held by the IATFCO Entities from time to time;

"IATFCO Entities" means the IATFCO and its subsidiaries;

"Officers" means the senior and executive management of the IATFCO Entities and any other persons designated by the board of directors of an IATFCO Entity to be the Officers of such entity;

"Official Activities" include all activities undertaken or carried out to allow the IATFCO to fulfill their purpose and functions as contemplated by their constitutional documents;

"Persons connected with the IATFCO" means Directors, Officers and Employees of the IATFCO Entities as well as experts performing services and missions of the IATFCO Entities;

"Premises of the IATFCO" means land, facilities, buildings and parts of buildings (including access facilities, shared spaces and common areas) in the Republic of Zimbabwe as detailed in Article 5; and

"VIPs" means the heads of states and governments of African and other countries, heads of international and regional organisations, ministers and other government officials of African and other countries with level equivalent to ministers as well as high-ranking officials of the African Export-Import Bank group, the African Union Commission, and African Continental Free Trade Area Secretariat, as well as the governing and advisory bodies of the IATFCO Entities.

ARTICLE 2

INTERPRETATION

1. This Agreement shall be interpreted in the light of the primary objective of enabling the IATFCO Entities to carry out their mandate, activities and operations in the Republic of Zimbabwe and to clarify the immunities, privileges and benefits of the IATFCO Entities and Persons Connected with the IATFCO in fulfilling this mission fully and effectively.

2. Any other document, agreement or treaty setting out the immunities and benefits of the IATFCO Entities shall continue to be in full force and effect and shall not be amended or varied in any way by this Agreement.

ARTICLE 3

LEGAL PERSONALITY

For the purposes of this Agreement, each of the IATFCO Entities shall be recognized as a juridical person, with full legal capacity (including to own property and assets, enter into contracts and conclude agreements, and carry out other acts of a legal person).

ARTICLE 4

IMMUNITY FROM JUDICIAL PROCEEDINGS

1. Within the scope of their Official Activities the IATFCO Entities shall enjoy immunity from judicial proceedings, except that the immunity shall not apply—

(a) to the extent that any IATFCO Entity shall have expressly waived any such immunity in any particular case in any written document;

(b) in respect of a civil action relating to death or personal injury caused by an act or omission of any IATFCO Entity or a person contracted with the IATFCO;

(c) in respect of the enforcement of an arbitration award made against any IATFCO Entity as a result of an express submission to arbitration by any IATFCO entity;

2. The property and assets of the IATFCO and the IATFCO Entities shall, wheresoever located and by whomsoever held, be immune from all forms of restraint, seizure, attachment or execution.

ARTICLE 5

THE PREMISES OF THE IATFCO ENTITIES

1. The Government shall be responsible for the provision of the office and exhibition facilities for the IATFCO Entities, which venue shall, at a minimum:

(a) have similar amenities as other international trade fair and exhibitions as acceptable to the IATFCO Entities;

(b) have at least 50 000- 60 000 square meters of gross exhibition space and permanent exhibition and conference facilities that meets international standards, ensuring ample room for exhibitors and attendees. Additionally it should include a conference hall capable of comfortably accommodating a minimum of 5000 attendees for plenary sessions;

(c) be located in a prime location within a 15-kilometer radius of the major airport (with the most direct flights to and from African countries) and recreational hotels in Harare, Zimbabwe;

(d) must include for (4) breakout rooms, each with a capacity for 500 delegates, to facilitate focused sessions and discussions. Additionally, multipurpose rooms and offices are required for smooth event operations, encompassing executive and working offices, small meeting rooms, VIP lounges, waiting areas, and dedicated press, media and interview rooms;

(e) be fully equipped with functional interpretation headsets to support multilingual communication in line with the official languages of the African Union, along with essential services such as catering, emergency and medical services, fire and safety protection, police and law enforcement services, sound systems, and parking;

(f) have office to accommodate 100-150 employees and support staff for the entire duration of the IATF. This office space must be adequately equipped and located in close proximity (within a 1-kilometer radius) to the venue or other relevant facilities; and

(g) be located near major international brand hotels and other accommodation options acceptable to IATFCO.

2. The Government shall provide the IATFCO Entities (at no cost) with at least 600 000 (six hundred thousand) square metres of land in a prime location for the development and construction of the premises of the IATFCO, which land shall be located within a 15- kilometer radius of the major airport and international hotels in Harare, Zimbabwe.

3. The Government shall also provide such other amenities and facilities as may be required by the IATFCO Entities pursuant to any agreement or document entered into between the Government and any IATFCO Entity.

4. All events and programmes of the IATF will be done by IATFCO in accordance with the IATF protocol, including the display of IATF flags, seating arrangements of VIPs and co-convenors, VIP accreditation and access to such facilities as would be accorded to heads of State and government.

ARTICLE 6

INVIOLABILITY OF THE PREMISES OF THE IATFCO

1. The premises of the IATFCO shall be inviolable and shall be under the control and authority of the IATFCO.

2. No official of the Government or person exercising any public authority, whether administrative, judicial, military or police, shall enter the premises of the IATFCO except with the written consent of and under the conditions approved by the chief executive of the IATFCO. Such consent may be assumed in the case of natural or man-made disasters requiring prompt protective action. The IATFCO and the Government shall agree in writing under what circumstances and in what manner may such official enter the Premises of the IATFCO without the prior written consent of the Directors of the IATFCO, in connection with fire prevention, sanitary regulations or emergencies.

3. No service (other than service by post) or execution of any legal process or any ancillary act, such as the seizure of private property, shall be permitted by the Government to take place within the Premises of the IATFCO except with the express written consent of and under conditions approved by the IATFCO.

4. Without prejudice to the terms of this Agreement, the IATFCO Entities shall at all times prevent the Premises of the IATFCO from becoming a refuge from justice for persons subject to extradition or deportation or who are avoiding arrest or service of legal process under the laws of Zimbabwe.

ARTICLE 7

PROTECTION OF THE PREMISES OF THE IATFCO

1. The appropriate authorities of Zimbabwe shall ensure that the tranquility of the Premises of the IATFCO as well as its dignity is not disturbed or impaired by any person or group of persons attempting unauthorised entry into, causing damages, or creating disturbance in the immediate vicinity of the Premises and shall provide, on the boundaries of the Premises, such police protection as may be required for these purposes.

2. If so requested by the IATFCO, the appropriate authorities of Zimbabwe shall provide a sufficient number of police personnel for the preservation of law and order in the Premises and for the removal therefrom of persons as requested by the IATFCO free of any administrative costs.

3. The Government shall not compulsorily acquire, nationalise, expropriate, dispose of, or seek to dispose of the Premises of the IATFCO or any of the IATFCO Entities.

ARTICLE 8

PUBLIC UTILITIES AND SERVICES IN THE PREMISES OF THE IATFCO

1. The Government shall ensure that the IATFCO Entities shall be provided with all public utilities and services given to other bodies and entities which are diplomatic missions or international organisations based in Zimbabwe.

2. In the case of any interruption or threatened interruption of any such utilities and services, the Government shall consider the needs of the IATFCO Entities as being of equal importance with those of diplomatic missions or international organisations and shall take steps accordingly to ensure that the operations of the IATFCO and the IATFCO Entities are not prejudiced.

3. The IATFCO shall, upon request, make suitable arrangements to enable duly authorized representatives of the appropriate public service bodies to inspect, repair, maintain, reconstruct and relocate utilities, conduits, mains and sewers within the Premises of the IATFCO, under conditions which shall not unreasonably disrupt the functions of the IATFCO Entities.

4. Any preferential rate or tariffs which may be granted to diplomatic missions or international organisations in Zimbabwe for supplies of the utilities and services mentioned in paragraph 1 of this Article shall also be accorded to the IATFCO Entities.

ARTICLE 9

FLAGS AND EMBLEM

The IATFCO Entities shall be entitled to display its flag or emblem or the flag and emblem of the IATFCO on the premises of the IATFCO and they shall be entitled to display the flags of the members states of the IATFCO on the premises of the IATFCO. The flag may only be displayed on any means of transport of an IATFCO Entity if the means of transport is the official vehicle of the chief executive officer or the administrative head of the IATFCO Entity.

ARTICLE 10

IMMUNITY OF PROPERTY AND INVIOLABILITY OF ARCHIVES OF THE IATFCO

1. The property and assets of the IATFCO Entities, wheresoever located and by whomsoever held, shall be immune from search, requisition. confiscation, expropriation and any other form of interference or taking or foreclosure by administrative or legislative action.

2. The Archives of the IATFCO shall be inviolable.

ARTICLE 11

COMMUNICATIONS AND PUBLICATIONS

1. The IATFCO Entities shall enjoy in Zimbabwe for their official communications and the transfer of all their documents treatment not less advantageous than the most favourable treatment which may be accorded by the Government to other international organisations or diplomatic missions based in Zimbabwe.

2. All official communications directed to the IATFCO Entities or to persons connected with the IATFCO at the premises of the IATFCO and all outward official communications of any IATFCO Entity, by whatever means or in whatever form transmitted, shall be immune from censorship and from any other form of interception or interference with their privacy. Such immunity shall extend to publications, still and moving pictures, films and sound recordings.

3. The IATFCO Entities shall have the right to use codes and to dispatch and receive official correspondence and other official communications by courier or in sealed bags which shall have immunities and privileges not less favourable than those accorded to diplomatic couriers and bags.

ARTICLE 12

EXEMPTION FROM CUSTOMS AND TAXATION

1. Within the scope of their Official Activities the IATFCO Entities.

2. The foreign staff of IATFCO Entities.

3. Goods and services imported or exported by the IATFCO Entities.

4. The IATFCO Entities shall have exemption from prohibitions and restrictions on importation of exportation in the case of goods which are imported or exported by any IATFCO Entities for its Official Activities.

ARTICLE 13

PRIVILEGES AND IMMUNITIES FOR PERSONS CONNECTED WITH THE IATFCO

1. The Managing Government shall authorize the entry to Zimbabwe without delay and without charge for visas, Persons connected with the IATFCO and the members of their families forming part of their households.

2. Persons connected with the IATFCO shall—

(a) be immune from jurisdiction and legal process including arrest and detention even after termination of their mission or service, in respect of acts performed by them in their official capacity, including words written or spoken by them;

(b) be exempt, together with members of their family forming part of their household, from immigration restrictions, alien registration requirements and exchange regulations, as are accorded by the Republic of Zimbabwe to officials of diplomatic missions or international organisations;

(c) be exempt, together with members of their family forming part of their household, from national service obligations;

(d) be granted, together with members of their family forming part of their household, the same treatment in respect of travelling facilities as is accorded by the Republic of Zimbabwe to officials of diplomatic missions or international organisations;

(e) be exempt from taxation in respect of salaries and emolument paid to them by the IATFCO Entities;

(f) be given, together with members of their family forming part of their household, the same repatriation facilities in times of international crisis as officials of diplomatic missions or international organisations; and

(g) be accorded inviolability for all their official papers and documents.

3. In addition to the privileges and immunities set out in paragraph 2, Directors, Alternate Directors, Officers and Employees of the IATFCO Entities and experts performing missions for the IATFCO Entities shall, at the time of first taking their post in Zimbabwe, be exempt from duties (whether of customs or excise) and such other taxes or charges (except payment for services) in respect of import of their furniture and personal effects (including two motor cars each), and the furniture effects of members of their family forming part of their household, which are in their ownership or possession or already ordered by them and intended for their personal use or for their establishment. Such goods shall normally be imported within six (6) months of their first entry of such person into Zimbabwe; an extension of this period shall however be granted where reasonably justified. If such persons on the termination of their functions export goods to which this Paragraph applies, they shall be exempt from any duty or other charge which may be imposed by reason of such export (except payment for services). Reasonable quantities of certain articles for personal use or consumption

and not for gift or sale could be imposed under the above-mentioned regime. The privileges referred to in this paragraph shall be subject to the conditions governing the disposal of goods imported to Zimbabwe free of duty and to the general restrictions applied in Zimbabwe to all imports and exports.

4.—

(a) directors, alternate directors, officers and employees of the IATFCO Entities—

(i) have the right to use codes and receive documents or correspondence by special courier or diplomatic bags;

(ii) have the same customs facilities as regards their personal; baggage as are accorded to diplomatic agents;

(iii) are immune from arrest, detention or imprisonment and from seizure of their personal baggage.

(b) the provisions of this Article shall be applicable irrespective of the relations existing between the governments which those persons are nationals of and the Government, and are without prejudice to any special immunities to which such persons may otherwise be entitled;

5. The directors, officers and employees of the IATFCO Entities who shall enjoy the privileges and immunities specified in this Agreement shall be provided by the Government with a special identity card which shall serve to identify the holder in relation to authorities of Zimbabwe and to certify that the holder enjoys the privileges and immunities specified in this Agreement. The list shall be provided by the IATFCO Entities from time to time to the Government for the issuance of the cards.

ARTICLE 14

SOCIAL SECURITY

1. The directors, alternate directors, officers and employees of the IATFCO Entities shall with respect to services rendered for the IATFCO be exempt from the provisions of any social security scheme established by the Republic of Zimbabwe.

2. However Officers and Employees of the IATFCO Entities, as well as any Directors or Alternate Directors who are permanently based in Zimbabwe, shall be entitled to participate in the social security scheme of Zimbabwe.

ARTICLE 15

OPPORTUNITY TO TAKE EMPLOYMENT

1. The IATFCO Entities shall not employ as an Officer or Employee of any IATFCO Entity or as expert performing missions for the IATFCO any person who is present in Zimbabwe at the time of such employment without taking all reasonable steps to ascertain that such person is not present in Zimbabwe in violation of the relevant immigration laws or is not subject to a prohibition thereunder from taking up employment in Zimbabwe.

2. The spouses and members of the family forming part of their household of those Officers, Employees of the IATFCO and the IATFCO Entities and experts performing missions for the IATFCO and the IATFCO Entities, who are resident in Zimbabwe, shall be accorded the opportunity to take employment in Zimbabwe.

ARTICLE 16

WAIVER OF IMMUNITIES EXEMPTIONS AND PRIVILEGES

1. The immunities, exemptions, benefits, assurances and privileges conferred under this Agreement are granted in the interests of the IATFCO Entities to ensure, in all circumstances, the freedom of action of the IATFCO Entities and the complete independence of persons.

2. The IATFCO may waive to such extent and upon such conditions as it may determine any of the immunities, exemptions, benefits, assurances and privileges.

3. The board of Directors of the IATFCO shall have the right to waive immunity, exemption or privilege in respect of any Officer or Employee of the IATFCO or expert performing missions for the IATFCO Entities, where, in its opinion, the immunity, exemption or privilege would impede the course of justice and can be waived without prejudice to the interests of the IATFCO and/or the IATFCO Entities. In similar circumstances and under the same conditions, the board of Directors shall have the right to waive any immunity, exemption or privilege in respect of any Director.

ARTICLE 17

NOTIFICATION OF APPOINTMENTS: LIST

The IATFCO Entities shall inform the Government when an Officer or Employee of the IATFCO Entities or an expert performing missions for any IATFCO Entity takes up or relinquishes his or her duties. Furthermore, the IATFCO Entities shall provide the Government with an updated list of all such Officers, Employees of the IATFCO Entities and experts from time to time but no more than once in a calendar year. It shall in each case indicate whether or not the individual concerned is a national of Zimbabwe.

ARTICLE 18

GENERAL PROVISIONS

1. Without prejudice to the privileges and immunities accorded by this Agreement, it is the duty of all persons enjoying such privileges and immunities to respect the laws and regulations of the Republic of Zimbabwe.

2. The IATFCO Entities shall take every precaution to ensure that no abuse of a privilege or immunity conferred by this Agreement shall occur.

ARTICLE 19

CO-OPERATION

1. The government shall co-operate fully with the IATFCO in connection with all activities of the IATFCO Entities.

2. The IATFCO Entities shall co-operate at all times with the appropriate authorities of Zimbabwe in order to prevent any abuse of the immunities, privileges, exemptions and facilities provided for in this Agreement.

3. Nothing in this Agreement shall affect the right of the Government to take any precaution necessary for the security of the Republic of Zimbabwe. If the Government considers it necessary to apply the preceding sentence, it shall approach the IATFCO Entities as rapidly as circumstances allow, in order to determine, by mutual agreement, the measures necessary to protect the interests of the IATFCO Entities. The IATFCO Entities shall collaborate to avoid any prejudice to the security of the Republic of Zimbabwe.

ARTICLE 20

CONSULTATIONS

1. At the request of either the Government or the IATFCO, consultations shall take place on any matter concerning the implementation, interpretation or amendments of this Agreement.

2. The Government and the IATFCO may enter into such supplementary agreements as may be necessary to fulfill the purpose of this Agreement.

ARTICLE 21

LICENCES, PERMITS AND OTHER REGULATORY APPROVALS

The Government shall facilitate, enact or issue any or all statutes or orders, consents and/or approvals or permits necessary or appropriate for the establishment and operations of the IATFCO (including any waiver required for the operation of the IATFCO Entities).

ARTICLE 22

HOST GOVERNMENT OBLIGATIONS FOR THE IATF

1. The Government shall—

(a) waive import and customs duties for goods and products temporarily imported for exhibition at, or operations of, the IAATF, with a minimum threshold of USD 30 000 per IATF participant or exhibitor;

(b) ensure an efficient process for the re-exportation or return of unsold or unused goods, tools, or service items for exhibitors as well as goods or service items used in the operations of the IATF;

(c) provide marketing and promotion support for the IATF, including by—

(i) launching extensive on ground marketing efforts within its borders;

(ii) mobilising local businesses and industry leaders to participate in the IATF; and

(iii) advertising the IATF on national media outlets, government websites, and tourism platforms;

(d) ensure visa waivers (or, where not feasible, visa-on-arrival) for all IATF participants and exhibitors, with dedicated infrastructure at the various ports of entry and exit for the purposes of easy and quick passage;

(e) facilitate ease of movement for IATF participants and exhibitors by providing private shuttle services to and from the IATF venue(s) as may be required by the IATFCO Entities as well as expand existing public transportation routes to directly connect major hotels and key areas of the city with the IATF venue;

(f) be given, together with members of their family forming part of their household, the same repatriation facilities in times of international crisis as officials of diplomatic missions or international organisations; and

(g) be accorded inviolability for all their official papers and documents.

2. The Government must ensure dedicated transportation services for VIPs, with professional drivers, priority routes, and special access points at both the IATF venue and their various accommodations. Additionally, the VIPs shall be provided with the

level of security, protection and other privileges to ensure their proper participation in the IATF. Nothing in this Agreement shall derogate from or replace any official benefits which accrues to such VIPs visiting Zimbabwe.

3. To ensure the proper delivery of the obligations of the Government under this Agreement in respect of the IATF, the Government shall ensure that all relevant measures are in place and shall confirm the same in writing (with a detailed report) to the IATFCO no later than three (3) months before the date of each IATF or sectoral exhibitions or conference events.

ARTICLE 23

SETTLEMENT OF DISPUTES

Any question of interpretation or application of the provisions of this Agreement arising between the Government and the IATFCO shall be referred to arbitration under the International Chamber of Commerce ("ICC") arbitration rules whose decision shall be final and binding. The foregoing procedure shall be applicable in lieu of any other procedure for the settlement of disputes and neither the IATFCO nor the Government may bring action in court in respect thereof, except in order to enforce a decision of the arbitral tribunal.

ARTICLE 24

AMENDMENTS

1. Either Party may request in writing a revision, amendment or modification of all or part of this Agreement which, if mutually agreed upon in writing, shall come into force on such date as determined by the Parties. Any revision, amendment or modification shall be done without prejudice to the rights and obligations arising from or based on this Agreement prior or up to the date of such revision, amendment, or modification.

2. The Parties may enter into such supplementary agreements as may be necessary within the scope of this Agreement.

ARTICLE 25

FINAL PROVISIONS

1. This Agreement shall take effect upon due execution by the Parties hereto on the date first above written. Each Party will immediately carry out any required procedural steps to enable it to meet its obligations under this Agreement.

2. This Agreement shall cease to be in force—

(a) by mutual accord of the parties thereto; and

(b) if the IATFCO agrees to be hosted by another country.

3. Relevant provisions of this Agreement shall continue to be applied during a reasonable period after its termination in order to permit the settlement of the affairs of the IATFCO Entities and disposal of any property any IATFCO Entity wishes to dispose of in the Republic of Zimbabwe.

4. As soon as practicable after its establishment, each IATFCO Entity shall enter into a Deed of Adherence agreeing to the terms set out in this Agreement as if it were an original party hereto. The executed Deed of Adherence shall be delivered to the Government after entry.

5. The Republic of Zimbabwe acknowledges and confirms that each IATFCO Entity shall, upon establishment and without any further approvals, process or procedure, enjoy the benefits conferred upon it by this Agreement.

Entered into on this 30th day of October, 2025.

SCHEDULE: Form of Deed of Adherence

THIS DEED OF ADHERENCE ("Deed') made this ---------- by (*insert details of IATFCO Entity*)

WHEREAS

A. A host country agreement dated ---------- ("HCA") was entered into between the Republic of Zimbabwe, African Export-Import Bank, African Union Commission and the African Continental Free Trade Area Secretariat in respect of the hosting of the Intra African Trade Fair in Zimbabwe.

B. Under the terms of the HCA, it is a condition that each IATFCO Entity, as soon as practicable after its establishment, shall enter into this deed,

NOW THIS DEED WITNESSES AS FOLLOWS:

1. The terms and expressions used in this Deed shall have the same meanings as the terms and expressions defined in the HCA.
2. [Name of IATFCO Entity] hereby confirms that it has been supplied with a copy of the HCA and, hereby, covenants with each of the parties to the HCA to observe, adhere to and be bound by all the terms, rights and benefits of the HCA.
3. This Deed is supplemental to the HCA. It is intended that this document takes effect as a deed notwithstanding the fact that the signatory may only execute this document under hand.

Signed, Sealed and Delivered for [] by:

Full name

Position:

Signature:

In the presence of:

Full name

Position:

Signature: